

Amendment No. 1 to SB1037

Briggs
Signature of Sponsor

AMEND Senate Bill No. 1037

House Bill No. 845*

by deleting all language after the caption and substituting:

WHEREAS, a citizen in the State of Tennessee has the constitutional right to petition the government for a redress of grievances, whereby a citizen may address elected and appointed officials both to address agenda items and draw their attention to matters on the record that may not be on a meeting agenda but that reside within the purview, jurisdiction, or influence of a governing body. During a public meeting, and in accordance with a citizen's constitutional right to address elected and appointed officials, the citizen has the right to rebut a statement or statements made during a public meeting; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-44-112, is amended by deleting subsections (b) and (c) and substituting:

(b)

(1) The governing body may place reasonable restrictions on the period for public comment and rebuttal, such as the length of the period, the number of speakers, and the length of time that each speaker will be allowed to provide comment and rebuttal. The governing body may require a person to give notice in advance of the desire to offer comments at a meeting. The governing body shall take all practicable steps to ensure that opposing viewpoints are represented fairly, if any.

(2) A governing body that places reasonable restrictions on the period for public comment and rebuttal may vote to waive or change such restrictions in

meetings when the restrictions would not accommodate a large number of members of the public present desiring to provide public comment or rebuttal.

(3) In considering what is a reasonable restriction, a governing body shall consider the number of people present who want to provide public comment or rebuttal.

(4) In addition to placing reasonable restrictions on public comment or rebuttal with respect to matters of significant public interest and for which a significant number of members of the public indicate a desire to provide public comment or rebuttal, the governing body may accept, in addition to public comment or rebuttal, the submission of written comments from members of the public who are not afforded the opportunity to speak. If the governing body chooses to accept written comments, the governing body shall specify the manner in which written comments may be submitted to the body and shall incorporate such written comments into the public record for purposes of the public meeting.

(c) A notice for a public meeting shall indicate the manner in which a person may indicate the person's desire to provide public comment or rebuttal at the meeting.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.